

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUBT019466: SOUTHERN CALIFORNIA RAILWAY MUSEUM INC vs NOAH S
MCCANN, et al.**

**08/28/2026 in Department 21
Motion for Summary Judgment**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Southern California Railway Museum Inc.’s Motion for Summary Adjudication

Tentative Ruling: Plaintiff Southern California Railway Museum Inc.’s (“Museum”) motion for summary adjudication of causes of action for quiet title and declaratory relief is CONTINUED.

If it appears from the evidence submitted in opposition to a motion for summary judgment “that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented,” this court must either deny, or continue, the motion. (CCP §437c(h).) The purpose of this provision is to mitigate the harshness of summary judgment for a party who has not had the opportunity to marshal evidence to oppose the motion. *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 253. The continuance pursuant hereto is “mandatory” if the conditions are met. *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715; *Mary Morgan, Inc. v. Melzark* (1996) 49 Cal.App.4th 765, 770-771.

Here, defense counsel has met the statutory requirements justifying a continuance. Said continuance would enable counsel to take the depositions of Gary Starre, David Wilkinson, Robert Winn, and David Rowlands, all of whom have submitted declarations in support of Plaintiff’s motion for summary adjudication. Defense counsel’s declaration explains the hardships he has had in completing the pertinent discovery due to the illness and passing of his wife.

The motion for summary adjudication is continued to 1/28/27 at 8:20 am.

Notice to be given by counsel for Plaintiff.